

Pramod Kumar Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 September 2018 · Writ - C No. 31047 of 2018 · **Writ disposed of; connection directed on Clause 4.4 indemnity bond.**

HEADNOTE

Where a new connection was withheld because of a landlord-tenant dispute, the Allahabad High Court directed the Executive Engineer to consider and grant supply if the occupant applied under the U.P. Electricity Supply Code, 2005 and furnished the Clause 4.4 indemnity bond in Annexure 4.2, along with other Code requirements.

FACTUAL SUMMARY

Pramod Kumar Sharma sought a mandamus to the Executive Engineer, Electricity Distribution Division, Town Hall, Hapur, to grant an electricity connection after he claimed to have completed formalities and deposited the demanded amount, and to decide his representation of 26 July 2018. The department was withholding the connection because of a landlord-tenant dispute over the premises. The licensee relied on Clause 4.4 of the U.P. Electricity Supply Code, 2005 and the indemnity-bond form in Annexure 4.2.

REUSABLE CONSTRUCTIONS

1. A new connection cannot be refused merely because of a landlord-tenant dispute; the occupant is to be granted supply under Clause 4.4 on an indemnity bond in Annexure 4.2 and compliance with the other requirements of the Code. ¶ 4-5

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond despite landlord-tenant dispute

HOLDING

Where the licensee withholds a new connection because of a landlord-tenant dispute over the premises, the Executive Engineer is directed to consider and grant the connection subject to the applicant applying under the U.P. Electricity Supply Code, 2005, furnishing the indemnity bond contemplated by Clause 4.4 and Annexure 4.2, and fulfilling the other requirements of the Code. ¶ 4-5